

26STLC02376 26STLC02376

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-09-03

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SS%20%2C26%2C09%2F03%2F2026

Source SHA-256: d0bf4eb9f061251dce0765f376a651861f6a502992834f2a1272081d8e40a08c

Case Number: 26STLC02376 Hearing Date: September 3, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff National Commercial Recovery, Inc. dba Blair Smith and Associates' Motion to Compel Further Responses to Set One of Special Interrogatories is granted. Defendant Elad Primosher is ordered to serve code-compliant, supplemental responses to the Special Interrogatories, Set One, Nos. 5-9 and 12-16, within 20 days of this ruling.

Defendant Elad Primosher is ordered to pay Plaintiff's counsel sanctions of \$630.00, also within 20 days.

The Court sets for hearing on November 6, 2026 at 8:30 AM Orders to Show Cause re: [1] the Status of Legal Representation of Defendant PF Bakeries, LLC and Defendant PF Pita Chips, LLC, and [2] Why the June 3, 2026 Answer should not be stricken as to Defendant PF Bakeries, LLC and Defendant PF Pita Chips, LLC, for being filed without counsel.

Analysis:

Plaintiff National Commercial Recovery, Inc. dba Blair Smith and Associates ("Plaintiff") filed the instant action for common counts against Defendant PF Bakeries, LLC ("Defendant PF Bakeries") on April 7, 2026. On May 6, 2026, Plaintiff filed a First Amended Complaint that added PF Pita Chips, LLC ("Defendant PF Pita Chips") and Elad Primosher ("Defendant Primosher") as defendants. On June 3, 2026, Defendant Primosher filed an Answer purportedly on behalf of all three Defendants.

On August 5, 2026, Plaintiff filed the instant Motion to Compel Further Responses to Set One of Special Interrogatories. Defendant Primosher filed an opposition on August 25, 2026 and Plaintiff replied on the same day.

Discussion

Procedural
Requirements

Notice of a motion to compel further must be given “within 45 days of service of the verified response, or any supplemental verified response, or any specific later date to which the requesting party and the responding party have agreed in writing,” otherwise, the propounding party waives any right to compel a further response. (Code Civ. Proc., § 2030.300, subd. (c).) Defendant Primosher served responses to the Special Interrogatories, Set One, at issue, by mail on June 18, 2026. (Motion, Besnyl Decl., ¶3 and Exh. B.) The instant Motion was timely filed and served on Defendant Primosher 45 days later, plus three days to account for service by mail. (Code Civ. Proc., § 1013, subd. (b).)

California Rules of Court Rule 3.1345 requires all motions or responses involving further discovery to contain a separate statement with the text of each request, the response, and a statement of factual and legal reasons for compelling further responses. (Cal. Rules of Court, Rule 3.1345, subd. (a).) Alternatively, “the court may allow the moving party to submit a concise outline of the discovery request and each response in dispute.” (Code Civ. Proc., § 2031.310, subd. (b)(3).) The Motion is accompanied by a separate statement. (Motion, Separate Statement, filed 08/05/26.)

Finally, the Motion must be accompanied by a meet and confer declaration. (Code Civ. Proc., § 2030.300, subd. (b)(1)).) Plaintiff’s counsel sent Defendant Primosher a meet and confer letter on July 6, 2026. (Motion, Besnyl Decl., ¶4 and Exh. B.) Following Defendant Primosher’s failure to respond, they spoke on the phone and Defendant Primosher agreed to serve additional documents, but not further written responses. (Id. at ¶5.) Defendant Primosher also did not agree to an extension of the time for Plaintiff to file the instant Motion. (Ibid.) This demonstrates an adequate meet and confer effort by Plaintiff prior to filing the instant Motion.

Special
Interrogatories, Set One

Plaintiff moves for an order compelling Defendant Primosher's further response to Special Interrogatories, Set One, Nos. 5-9 and 12-16. These interrogatories seek information identifying managing members and officers of the two LLC defendants, and information about capital investments and signing authority on LLC bank accounts. In response to each, Defendant Primosher asserted privacy objections and refused to disclose the information without a protective order or court order. (Separate Statement, p. 2:10-13.) The Motion is brought pursuant to Code of Civil Procedure section 2030.300.

"On receipt of a response to interrogatories, the [propounding party] may move for an order compelling a further response if that party deems that: An answer to a particular [request or interrogatory] is evasive or incomplete" or "[a]n objection to an interrogatory is without merit or too general."

(Code Civ. Proc., § 2030.300, subd. (a)(1), (3).) Code of Civil Procedure section 2030.220 states that "[e]ach answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits." (Code Civ. Proc., § 2030.220, subd. (a).) "To show an interrogatory seeks relevant, discoverable information 'is not the burden of [the party propounding interrogatories]. As a litigant, it is entitled to demand answers to its interrogatories, as a matter of right, and without a prior showing, unless the party on whom those interrogatories are served objects and shows cause why the questions are not within the purview of the code section.'" (Williams v. Superior Court (2017) 3 Cal.5th 531, 541.)

Plaintiff argues that the interrogatories seek information relevant to alter-ego allegations in the Amended Complaint, and that corporate privacy objections apply to only trade secret information. (Separate Statement, p. 2:15-22.) Defendant Primosher's opposition does not dispute the relevance of the information sought, nor defend the assertion of a privacy interest. Rather, Defendant states that he "believed" that the information was confidential or private and that he did not intend to obstruct discovery. (Opp., Primosher Decl., ¶3.) Given Defendant's failure to explain or defend the validity of the objections, Plaintiff is entitled to an order compelling Defendant Primosher's further responses to the interrogatories, without objections.

Plaintiff requests sanctions under Code of Civil Procedure section 2030.300, subdivision (d), which states: "The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2030.300, subd. (d).)

Here, sanctions are warranted. Defendant Primosher concededly raised objections to discovery without any known or identified justification, which forced Plaintiff to bring the instant Motion to compel proper responses. In that circumstance, sanctions are appropriate. Because the opposition essentially concedes error, the Court reduces the attorney time claimed by one hour. Plaintiff is awarded sanctions of \$660.00 based on two hours of attorney time billed at \$300.00 per hour, and the \$60.00 filing fee. (Motion, Besnyl Decl., ¶19.)

Status of Entity Defendants

Defendant Primosher's Answer to the First Amended Complaint purports to be filed by Defendant Primosher on behalf of all three defendants in this action. It is black letter law that a corporation cannot represent itself in court. (*Clean Air Transport Systems v. San Mateo County Transit Dist.* (1988) 198 Cal.App.3d 576, 578 (citing *Merco Constr. Engineers, Inc. v. Municipal Court* (1978) 21 Cal.3d 724, 729-730).) This rule applies to all entities regarded as separate from their owners, including limited liability corporations. (See *Clean Air Transport Systems*, supra, 19 Cal.App.3d at 578.) This means that the June 3, 2026 Answer is not effective as to Defendants PF Bakeries, LLC and PF Pita Chips, LLC.

To address the issue, the Court will set show-cause hearing [1] as to the status of legal representation of Defendant PF Bakeries, LLC and Defendant PF Pita Chips, LLC; and [2] as to why the June 3, 2026 Answer should not be stricken as to Defendant PF Bakeries, LLC and Defendant PF Pita Chips, LLC for being filed without counsel. On the date set for hearing, absent good cause, the Court will strike the Answer as to Defendant PF Bakeries, LLC and Defendant PF Pita Chips, LLC pursuant to Code of Civil Procedure, section 436(b), as not

drawn in conformity with the laws of this state, a court rule, or an order of the court.

Conclusion

Plaintiff National Commercial Recovery, Inc. dba Blair Smith and Associates' Motion to Compel Further Responses to Set One of Special Interrogatories is granted. Defendant Elad Primosher is ordered to serve code-compliant, supplemental responses to the Special Interrogatories, Set One, Nos. 5-9 and 12-16, within 20 days of this ruling.

Defendant Elad Primosher is ordered to pay Plaintiff's counsel sanctions of \$630.00, also within 20 days.

The Court sets for hearing on November 6, 2026 at 8:30 AM Orders to Show Cause re: [1] the Status of Legal Representation of Defendant PF Bakeries, LLC and Defendant PF Pita Chips, LLC, and [2] Why the June 3, 2026 Answer should not be stricken as to Defendant PF Bakeries, LLC and Defendant PF Pita Chips, LLC, for being filed without counsel.

Moving party to give notice.